

LAW 353 – Aboriginal and Treaty Rights Seminar

Final Project Reflection and Essay

Cameron Pollock

SN: 15853302

Due: April 29, 2020

Explanation of Final Project

It is rare to have the opportunity to express one's creativity within the normal, narrow confines of a legal education, aside perhaps from creating novel arguments or drafting a particularly unique paper. However, any creativity usually remains limited to a written or spoken format. Representing a legal issue visually helps cut through the prose and jargon. In this case, the issue that I felt needed and deserved a visual representation was the Canadian legal system's short and inadequate relationship with Indigenous oral histories as evidence in Aboriginal legal cases. I wanted to show just how recent that relationship is, how little substance there has been to it, and how much more it needs to grow.

The piece is made from a cedar tree round, cut into a thin disc. The tree grew on Gambier Island in Howe Sound. The Squamish nation called the island Cha7élkwnech, which refers to its deep, protected bays.¹ It began growing in 1933 and was cut in August 2019, when it was 86 years old. On one face of the round, four copper nails have been driven in.

The nail closest to the centre marks the year 1951, when the *Indian Act* was amended to allow Indigenous peoples to practice their cultures, dances, ceremonies, and to remove the ban on legal claims.² The second nail marks the year 1973, when *Calder v British Columbia (AG)* [1973] SCR 313 was decided, which recognized that Aboriginal title to land existed prior to colonization and derived from Indigenous legal

¹ Province of BC, BC Geographic Names, "Gambier Island" (Online: 2020) <https://apps.gov.bc.ca/pub/bcgnws/names/5270.html>

² Native Women's Association of Canada, *The Indian Act Said WHAT?* (Online: 2018) <https://www.nwac.ca/wp-content/uploads/2018/04/The-Indian-Act-Said-WHAT-pdf-1.pdf>

orders, society, and occupation of the land. The third nail marks the year 1997, when *Delgamuukw v British Columbia* [1997] 3 SCR 1010 was decided, which expanded on the content and nature of Aboriginal title and recognized oral histories as evidence acceptable to the courts, placing them on equal footing with historical documentary evidence. The final nail marks the year 2014, when *Tsilhqot'in Nation v British Columbia* 2014 SCC 44 was decided, the first case to recognize and declare Aboriginal title to traditional territory and which relied in part on oral history evidence.

The nails are connected by a thin, red thread that represents the narrow path the Canadian legal system has trodden on its way to recognizing oral histories as valid and valuable. The nails themselves, driven into the tree, represent the imposition of Canadian law on the lands and traditional territories of Canada's Indigenous peoples. The spacing of the nails marks out the short period of time the system has actually engaged with the concept of Aboriginal title and the recency of the recognition of oral histories as evidence. The small size of the tree round and the short period of time it represents, less than one hundred years, helps show the comparative infancy of the Canadian legal system. Overall, this face of the tree round works to illustrate the relatively barren landscape of the of Canadian law's interaction with Indigenous legal orders and the oral traditions that help constitute and maintain them.

On the reverse face of the tree round are the words "Into Time Out of Mind," which are arranged in a circle and repeat three times. This face represents the incredible time-depth of Indigenous oral histories and traditions in Canada, that they pre-exist the Canadian state and legal system, and constitute an enormous, collective repository of traditional knowledge, laws, and culture. The words are painted into the

tree round, representing the how oral histories are so often embodied in and derived from the land. Finally, the depictions of oral histories and of Canadian law's engagement with them on the two sides of the piece represent both Indigenous and Canadian legal orders, and that they must co-exist.

Reflections on Oral Histories as Evidence

Thinking back to the discussions in the seminar, as they relate to oral histories as evidence, the main question that I kept coming back to was why, as in the case of McEachern in *Delgamuukw*, have courts been so unwilling or unable to accept Indigenous peoples' own accounts of their histories, in their own words? I think there are a myriad of interconnected factors and reasons that persist despite positive changes.

In *Delgamuukw*, the SCC's decision was that laws of evidence would have to be adapted to accommodate oral histories and place them on equal footing with the historical evidence with which courts are familiar.³ This may have removed a significant procedural hurdle, but the structural problems that remain are both pervasive and troubling. Canada's highest courts have continued in some cases to contest oral histories as sources of evidence; Val Napoleon's analysis of *Benoit v Canada* (a case about whether Treaty 8 included a tax exemption clause) showed that the Federal Court of Appeal relied heavily on an expert witness who stated that there is "nothing inherent in orality that fosters accurate transmission of information and no evidence to suggest

³ *Delgamuukw v British Columbia (AG)* [1997] 3 SCR 1010, at para 87.

genetic or cultural immunity from the forgetfulness that plagues the rest of the human species.”⁴ Despite this problematic language, and after its judgement in *Delgamuukw*, the SCC refused to hear an appeal.⁵ Lower courts also continue to devalue oral histories as evidence in disregard of established legal principles, which works to defeat Indigenous interests and claims and to subordinate them to the maintenance of Canadian state sovereignty.⁶

Underlying the widespread rejection of oral histories as hearsay pre-*Delgamuukw* and the spotty application of the principles enunciated in that case since are structural and historical issues with not just the Canadian legal system and state, but with the Western model of law. One major problem is the continued presumption of ultimate Crown sovereignty, which as was discussed numerous times during the seminar, seems to have no firm legal basis and results from nothing other than the historical process of colonization and imperialism. This is a continuation of colonial attitudes of European superiority that have been expressed since contact. The description by early international legal jurist Francisco de Vitoria of Indigenous peoples of the Americas is telling:

“Although the aborigines in question are (as has been said above) not wholly unintelligent, yet they are a little short of that condition, and so are unfit to found or administer a lawful State up to the standard required by human and

⁴ Carmella Murdocca, “A Matter of Time and a Matter of Place: Colonial Inquiries and the Politics of Testimony” (2017) 13:1 Law, Culture and the Humanities 123, at page 129.

⁵ Debora Steel, “Supreme Court Refuses to Hear Benoit Case” (2004) Raven’s Eye 8:1 online <https://ammsa.com/publications/ravens-eye/supreme-court-refuses-hear-benoit-case>

⁶ David Milward, “Doubting What the Elders Have to Say: A Critical Examination of Canadian Judicial Treatment of Aboriginal Oral History Evidence” (2010) International Journal of Evidence and Proof 14 287.

civil claims. Accordingly they have no proper laws nor magistrates, and are not even capable of controlling their family affairs.”⁷

The standard by which Indigenous peoples have been measured for so long has been European society, in a clearly racially supremacist manner. This has translated into numerous failures to recognize Indigenous societies and cultures on their own merits, as sovereign peoples, and as having their own legal systems and laws. The failure to understand and accept Indigenous histories in terms of their purpose, form, and content serves to deny the history and therefore legitimacy of Indigenous society and sovereignty. This was required in order to justify European imperialism and colonization to extract wealth and resources from the land; Indigenous legal orders, cultures, and societies were therefore denied on the basis of racial superiority and economic necessity.

This was continued in Canadian law and policy from the beginnings of Canada’s statehood. Confederation and the constitution, especially section 91(24), and the many governmental projects that followed such as the *Indian Act* and the program of residential schools, served to intervene in the affairs of Indigenous peoples, to break up their societies, and to force their assimilation into the European state that had been created on their traditional territories.⁸ While policies and attitudes may have changed, the underlying presumption that the Canadian Crown is sovereign remains. As was stated by Gitx’san Chief Delgamuukw in the opening statements to the BC Supreme

⁷ Antony Anghie, “The Evolution of International Law: Colonial and Post-Colonial Realities” (2006) *Third World Quarterly* 27:5 739, at page 743.

⁸ Canada, Royal Commission on Aboriginal Peoples, *Report of the Royal Commission on Aboriginal Peoples: Volume 1 – Looking Forward, Looking Back* (Ottawa: The Commission, 1996) at page 133.

Court in the *Delgamuukw* litigation, for the Gitx'san the ownership of and sovereignty over territory derives from the marriage of the Chief and the land; that power is reproduced by the maintenance of laws that ensure respect for the spirit in the land, and is carried in part in oral histories.⁹ Oral histories are a source of sovereignty for many other Indigenous peoples in Canada as well. This means that no matter the weight or respect accorded to oral histories, the presumption of Canadian sovereignty necessarily denies Indigenous sovereignty, and so denies the deeper role and importance of oral histories.

Chief Delgamuukw's explanation of the role of oral histories in establishing authority over and ownership of territory also helps explain why courts have failed to accept or struggled to understand the importance of oral history evidence. The Canadian legal system is a cultural enterprise based on Euro-Canadian conceptions of law, and the courts ability to understand and interpret Indigenous oral histories is affected by the inherent biases of that system.¹⁰ The rules around hearsay are a clear example of cultural incompatibility; Western legal tradition usually restricts the admissibility of evidence given by people who have received it second-hand.¹¹ For many Indigenous legal orders in Canada, the oral nature of the culture necessitates transmission of knowledge by word of mouth, and strict protocols exist to preserve the integrity of oral histories such as formal recitation during ceremonies.¹² Western cultural

⁹ Gisday Wa, "The Spirit in the Land: The opening statement of the Gitksan and Wet'suwet'en hereditary chiefs in the Supreme Court of British Columbia" (Gabriola Island: Reflections, 1989) at page 7.

¹⁰ Erin Hogg, "Archaeological Data as Evidence in Aboriginal Rights and Title Litigation in Canada" (SFU Department of Archaeology: PhD Thesis, 2019) at page 26.

¹¹ Arthur Ray, "Traditional Knowledge and Social Science on Trial: Battles over Evidence in Indigenous Rights Litigation in Canada and Australia" (2015) *The International Indigenous Policy Journal* 6:2, at page 1.

¹² Milward, "Doubting What the Elders Have to Say," *supra*, at pages 288, 296.

dominance has created a particular conception of what the study of history should look like: “a matter of scholarly debate grounded in careful analysis...of written, documentary evidence.”¹³ This approach conveniently downplays that written documents are subject to issues of author and reader bias and are not inherently more truthful or reliable.¹⁴ Despite the primacy accorded to written sources in Western legal attitudes, the fact remains that Indigenous oral histories are akin to “oral documents” that bear more similarity to intentionally created legal codes and historical narratives than to mere stories or tales.¹⁵ That courts continue to ignore this is indicative of a lingering preference for written documentary evidence, which is equally indicative of other lingering, problematic attitudes about Indigenous cultures.¹⁶

While *Delgamuukw* dealt with the issues of hearsay and admissibility, other problems remain. The judiciary is schooled in a western legal system that imports a particular way of thinking, rejects interactions between humans and non-humans,¹⁷ denies supernatural and spiritual elements, and generally adheres to a positivist, scientific perspective. This creates an inherent difficulty in trying to understand and employ Indigenous oral histories, which is exacerbated by the fact that most judges and lawyers are not Indigenous and have little experience with Indigenous cultures.¹⁸ I was reminded of Finch CJ’s discussion in his paper “The Duty To Learn” about this issue; he

¹³ Adam Daniel Etinson, “Aboriginal Oral History Evidence and Canadian Law” (2008) Central European Journal of Canadian Studies 6, at page 98.

¹⁴ Milward, “Doubting What the Elders Have to Say,” *supra*, at pages 305-307.

¹⁵ Mary Ann Pylypchuk, “The Value of Aboriginal Records as Legal Evidence in Canada: An Examination of the Sources” (1991) *Archivaria* 32 51, at page 54.

¹⁶ Milward, “Doubting What the Elders Have to Say,” *supra*, at page 296.

¹⁷ Pylypchuk, “The Value of Aboriginal Records as Legal Evidence in Canada,” *supra*, at page 52.

¹⁸ Chief Justice Lance Finch, “The Duty to Learn: Taking Account of Indigenous Legal Orders in Practice” (Vancouver: CLE BC, 2012) at para 3.

quotes Professor John Borrows as stating that the risks for misunderstanding Indigenous oral histories and legal orders are already enormous as a result of the lack of familiarity with Indigenous cultures.¹⁹ This is compounded by the fact that Western and Indigenous cultures have different conceptions of time, space, historical truth, and causality, which are often the very things under examination in a legal setting.²⁰ A serious result is that while oral histories may be admitted as evidence, judges unfamiliar with or biased against Indigenous knowledge systems and laws may accord them little or no weight, as was the case in McEachern CJ's judgement in *Delgamuukw*.²¹

The dangers that these issues pose are considerable and various. A first and serious consequence is the potential violence damage done to the Elders who are frequently called upon to relate oral histories to the courts. As knowledge keepers and repositories of culture, elders in Indigenous cultures are in a respected position where their words have value and are replete with important lessons and teachings. Having oral histories placed in a position to be questioned and cross-examined is a humiliating and vulnerable experience.²² In the words of one elder who testified before McEachern CJ in *Delgamuukw*: "We told that judge things we don't even tell our own grandchildren. We made ourselves naked in front of him. And he did not believe us."²³ This loss of authority to be believed and have beliefs and statements respected, key aspects of the position as an elder, is damaging to personal dignity and identity.²⁴

¹⁹ Finch CJ, "The Duty to Learn," *supra*, at para 4.

²⁰ *Ibid.*

²¹ Fraser Harland, "Taking the 'Aboriginal Perspective' Seriously: The (Mis)use of Indigenous Law in *Tsilhqot'in Nation v British Columbia*" (2017) Indigenous Law Journal, at page 9.

²² Etinson, "Aboriginal Oral History Evidence and Canadian Law," *supra*, at page 103.

²³ *Ibid.*

²⁴ *Ibid.*, at page 102.

While the need to retain some ability to assess oral histories for their relevance to particular legal matters remains in the Canadian legal system, the overall character that this process has taken continues to denigrate Indigenous knowledge and ways of knowing. This subordination and bias deepens the distinct disadvantage that Indigenous peoples experience in the Canadian legal system. The already onerous requirements for proof of Aboriginal rights and title are made even more burdensome by systematic hurdles to the acceptance of, and sometimes blatant opposition to Indigenous peoples' own laws, histories, and sources of sovereignty. Denying oral histories works to Canada's advantage in the project of maintaining Crown sovereignty; this can be seen in instances where judges have espoused a view that oral histories can only be used with "caution" because those persons relating them "have been actively involved in the 'pursuit of Indian rights' and there was a chance that their personal opinions may have coloured their testimony."²⁵

Finally, while courts have begun to engage with oral histories and traditions as an acceptable form of evidence, this framing has severely limited the status of oral history. Oral history is not merely a cultural archive or record, it is itself law.²⁶ In *Tsilqhot'in*, oral histories about law were limited to the evidentiary stage for the purposes of establishing the extent of occupation, and not as laws themselves.²⁷ This supports the contention that Canadian courts are only engaging with Indigenous laws as historical fact and for evidentiary purposes, and that they deny its status as an extant normative order.²⁸

²⁵ Milward, "Doubting What the Elders Have to Say," *supra*, at page 322.

²⁶ Harland, "Taking the 'Aboriginal Perspective' Seriously," *supra*, at page 3.

²⁷ *Ibid.*

²⁸ *Ibid.*

Despite these serious issues, which require considerable structural and attitudinal changes, there are some hopeful points. A more positive note was struck in the trial decision of *Tsilqhot'in* by Vickers J's treatment and use of oral histories. Vickers J's attitude towards oral histories is a marked improvement from the days of McEachern CJ at *Delgamuukw*, where the latter refused to accept them as evidence of fact and argued that they were too wrapped up in belief and mythology.²⁹ By contrast, Vickers J said he was "privileged" to hear the oral histories presented before him.³⁰ He also defended oral histories as carrying independent evidentiary weight where appropriate,³¹ and appears to have demonstrated a reasonably good grasp of the nature and form of Tsilqhot'in oral histories, in line with some of the principles about cultural competency that Finch CJ would outline several years after the decision. While the Tsilqhot'in Nation's title was not ultimately recognized until the Supreme Court's decision in 2014, the judgement stated that approaching questions like that of Aboriginal title must necessarily involve the Aboriginal perspective, including the laws and traditions of the group.³² As the "old school" justices who decided cases like *Delgamuukw* and *Van Der Peet* are replaced by a younger generation of lawyers and judges who are educated in Indigenous laws, legal orders, and cultures or who are themselves Indigenous, we may see the changes to the Canadian legal system and culture that are necessary to fully implement an Indigenous perspective, and place Indigenous legal orders on an even footing.³³

²⁹ Etinson, "Aboriginal Oral History Evidence and Canadian Law," *supra*, at page 100.

³⁰ *Tsilqhot'in Nation v British Columbia* [2007] BCJ No 2465, 2007 BCSC 1700 [*Tsilqhot'in*] at para 137.

³¹ *Tsilqhot'in*, *supra*, at para 153.

³² Harland, "Taking the 'Aboriginal Perspective' Seriously," *supra*, at page 2.

³³ Robin Ridington, "Dane-Zaa Oral History: Why It's Not Hearsay" (2014) BC Studies 183 37, at page 37.